

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Competition and Consumer Act 2010* (Cth) by:

Black Rhino Group Pty Ltd ACN 609 276 048

Black Rhino (Club Roma) Pty Ltd ACN 693 060 187

Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for
Light Them Up (Roma) Trust ABN 17 705 523 498

Black Rhino (Royal 99) Pty Ltd ACN 675 226 758

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1. Persons giving this Undertaking

- 1.1 This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by
- (a) Black Rhino Group Pty Ltd ACN 609 276 048 on behalf of itself and its subsidiaries,
 - (b) Black Rhino (Club Roma) Pty Ltd ACN 693 060 187,
 - (c) Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for Light Them Up (Roma) Trust ABN 17 705 523 498, and
 - (d) Black Rhino (Royal 99) Pty Ltd ACN 675 226 758
- (together referred to as **Black Rhino** in this Undertaking).

2. Background

The parties to the proposed acquisition

- 2.1 Black Rhino (Club Roma) Pty Ltd (ACN 693 060 187) and Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for Light Them Up (Roma) Trust ABN 17 705 523 498 (together referred to as the **Acquirer** in this Undertaking) are subsidiaries of Black Rhino Group Pty Ltd ACN 609 276 048.
- 2.2 Speedy Cocktails Pty Ltd (ACN 619 330 255) and Barry John Waldron as trustee for the Barry Waldron Family Trust (ABN 95 506 126 845) (together referred to as the **Target** in this Undertaking).

The Acquisition

- 2.3 The Acquirer is proposing to acquire:
- (a) The Target's business, Club Hotel Motel Roma, comprising of:
 - (i) pub and motel trading as 'Club Hotel Motel Roma' located at 42 McDowall Street, Roma QLD 4455 and 8-76 Charles Street, Roma QLD 4455;
 - (ii) McDowall DBS; and
 - (iii) Northern Road DBS.
 - (b) The freehold properties from which Club Hotel Motel Roma and the McDowall DBS operate and the leasehold interest in the premises from which Northern Road DBS operates.
- (the **Acquisition**)

The Notification

- 2.4 On 21 May 2026, the Acquirer lodged a notification in respect of the Acquisition with the ACCC (the **Notification**).
- 2.5 The objective of this Undertaking is to address the concerns about the Acquisition set out in the ACCC's determination and statement of reasons in respect of the Notification.

3. Commencement of this Undertaking

3.1 This Undertaking comes into effect when:

- (a) this Undertaking is executed by Black Rhino; and
 - (b) this Undertaking so executed is accepted by the ACCC,
- (the **Commencement Date**).

4. Cessation of ongoing obligations

Revocation

4.1 The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Waiver

4.2 The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

4.3 The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

4.4 Unless and until this Undertaking is withdrawn in accordance with s87B(2) of the Act, clauses 1, 2, 3, 4, 9, 10, 11, 12, 13, 14 and 15 survive completion of the obligations in clauses 5, 6, 7, 8, and Schedule 3 and Confidential Schedule 4.

5. Divestiture of the Divestiture Business

Divestiture

5.1 Black Rhino must, in accordance with this Undertaking, divest, or cause the divestiture of, the Divestiture Business only to an Approved Purchaser.

5.2 Black Rhino must not complete the Acquisition unless and until it has divested, or caused the divestiture of, the Divestiture Business by:

- (a) the sale, assignment, transfer and/or licence of all of the applicable assets in Schedule 3 to the Approved Purchaser, pursuant to the Approved Sale and Purchase Agreement and within the Sale Period;
- (b) the transfer or grant to the Approved Purchaser of all Consents pursuant to clauses 5.5 to 5.6;
- (c) the transfer of any Transferred Personnel required pursuant to clauses 5.7 to 5.8;

5.3 Black Rhino must

- (a) comply with any Approved Transitional Technical Assistance Agreement required pursuant to clauses 5.9 to 5.11; and

- (b) comply with any Approved Transitional Supply Agreement required pursuant to clauses 5.12 to 5.14.

5.4 The legal and beneficial ownership of the Divestiture Business must pass to the Approved Purchaser contemporaneously with or before completion of the Acquisition.

Consents

5.5 Black Rhino must:

- (a) obtain or assist the Approved Purchaser to obtain as expeditiously as possible, all Consents as required before completion of the divestiture of the Divestiture Business;
- (b) comply with all requirements necessary to obtain any Consents, including by promptly providing all information necessary for the Consents to be given;
- (c) act in good faith in its negotiations with the Approved Purchaser in relation to obtaining any Consents;
- (d) promptly pay the costs and expenses of any third party reasonably incurred in providing the Consents; and
- (e) enter an agreement with the Approved Purchaser and approved by the ACCC, or vary any existing Approved Transitional Supply Agreement as required by the Approved Purchaser, in relation to any goods or services that are required for the operation of the Divestiture Business which may be affected by any failure to gain a Consent.

5.6 If, seven Business Days before completion of the divestiture of the Divestiture Business, the Approved Purchaser does not or is otherwise unable to obtain one or more Consents, then Black Rhino must:

- (a) immediately provide to the ACCC in writing details of the:
 - (i) Consents that have not been obtained;
 - (ii) reasons why the Consents have not been obtained; and
 - (iii) information or material required to obtain the Consents.
- (b) continue to do everything in its power to satisfy clause 5.4 as soon as possible after the completion of the divestiture of the Divestiture Business (and until such time as clause 5.4 is satisfied).

Transferred Personnel

5.7 At the option of the Approved Purchaser, Black Rhino must transfer to the Approved Purchaser:

- (a) all employees; and
- (b) all service providers under a contract for service;

who are, in the view of the Approved Purchaser, required for the Approved Purchaser to maintain, operate or conduct effectively the Divestiture Business and who consent to the transfer of their employment or contract for service to the Approved Purchaser (**Transferred Personnel**).

5.8 When fulfilling its obligations under clause 5.7, Black Rhino must:

- (a) encourage all Transferred Personnel to remain with the Divestiture Business, including offering incentives based on industry practice;
- (b) not directly or indirectly discourage any Transferred Personnel from any obligations to provide services to the Divestiture Business;
- (c) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any obligations to provide services to Black Rhino or to the Seller;
- (d) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the Divestiture Business; and
- (e) not procure, promote or encourage the transfer of any of the Transferred Personnel from the Approved Purchaser to Black Rhino or to the Seller for a period of 12 months after the completion of the divestiture of the Divestiture Business.

Technical Assistance

5.9 At the option of the Approved Purchaser, Black Rhino must supply to the Approved Purchaser, under an Approved Transitional Technical Assistance Agreement, any Technical Assistance that is required by the Approved Purchaser in order to operate the Divestiture Business.

5.10 Black Rhino must ensure that any Approved Transitional Technical Assistance Agreement, and any renewal or extension of an Approved Transitional Technical Assistance Agreement, provides for the supply of Technical Assistance:

- (a) on a transitional basis for a period that is nominated by the Approved Purchaser and approved in writing by the ACCC; and
- (b) at cost price and otherwise on arm's length terms.

5.11 To avoid doubt, Black Rhino must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Technical Assistance Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Technical Assistance Agreement, the ACCC will have regard to the criteria set out in clauses 5.9 and 5.10.

Transitional Supply Agreements

5.12 At the option of the Approved Purchaser, Black Rhino must ensure the continued supply by Black Rhino to the Approved Purchaser, under an Approved Transitional Supply Agreement, of any goods or services that are required by the Approved Purchaser in order for the Approved Purchaser to be established as a viable, effective, stand-alone, independent and long-term competitor in the retail supply of off-premises takeaway liquor in Roma.

5.13 Black Rhino must ensure that any Approved Transitional Supply Agreement and any renewal or extension of an Approved Transitional Supply Agreement:

- (a) is for a reasonable transitional period, to be nominated by the Approved Purchaser and approved in writing by the ACCC;

- (b) provides for the supply of the included goods and services at cost price; and
- (c) is on such terms other than price which are no less favourable to the Approved Purchaser than arm's length terms.

5.14 To avoid doubt, Black Rhino must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Supply Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Supply Agreement, the ACCC will have regard to the criteria set out in clauses 5.12 and 5.13.

6. Process for approving a proposed purchaser

Potential purchasers

6.1 Black Rhino must provide the ACCC with:

- (a) the identity of any person who expresses an interest in acquiring the Divestiture Business;
- (b) the status of negotiations with each person; and
- (c) a copy of each person's offer to acquire the Divestiture Business, where relevant;

at the following times:

- (d) as soon as possible following the Commencement Date for those persons who express interest before the Commencement Date;
- (e) after the Commencement Date, within 10 Business Days of each person expressing the interest and/or providing an offer;

regardless of whether the person subsequently withdraws or is declined.

Provision of a notice for a Proposed Purchaser

6.2 To seek ACCC approval for a Proposed Purchaser, Black Rhino must provide the ACCC with a notice in the form prescribed in Schedule 2 to this Undertaking (**Proposed Purchaser Notice**), including a draft sale and purchase agreement, a draft transitional technical assistance agreement (where required by the Proposed Purchaser), and a draft transitional supply agreement (where required by the Proposed Purchaser).

6.3 The Proposed Purchaser Notice must be provided to the ACCC at least 20 Business Days prior to the end of the Sale Period.

Approval of a Proposed Purchaser after the Commencement Date

6.4 The ACCC may, in its discretion, approve or reject in writing the Proposed Purchaser identified in the Proposed Purchaser Notice. In exercising this discretion, the ACCC will consider, without limitation:

- (a) the draft sale and purchase agreement attached to the Proposed Purchaser Notice;
- (b) any draft transitional technical assistance agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.9 and 5.10; and

- (c) any draft transitional supply agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.12 and 5.13.

6.5 Without limiting the ACCC's discretion, in making the decision pursuant to clause 6.4, the factors to which the ACCC may have regard include whether the:

- (a) draft sale and purchase agreement is consistent with this Undertaking;
- (b) Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;
- (c) Proposed Purchaser is independent of Black Rhino;
- (d) Proposed Purchaser is of good financial standing;
- (e) Proposed Purchaser has a history of competition law compliance;
- (f) Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;
- (g) Proposed Purchaser is able to conduct the Divestiture Business effectively; and
- (h) divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including in relation to the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser.

6.6 The ACCC may revoke an Approved Purchaser's status as the Approved Purchaser if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

7. Divestiture Business Protection

Protection of the Divestiture Business

7.1 From the Commencement Date until the end of the Sale Period, Black Rhino must not sell or transfer its interest, or any assets comprising part of, or used in, the Divestiture Business (other than the sale of goods and services in the ordinary course of business) or make any Material Change, except in accordance with this Undertaking or (subject to the other terms of this Undertaking) as necessary to allow completion of the Acquisition.

Black Rhino's obligations in relation to the Divestiture Business prior to completion of divestiture

7.2 Without limiting this clause 7, Black Rhino must, from the Commencement Date until completion of the divestiture of the Divestiture Business or the end of the Sale Period, take all steps available to it to:

- (a) ensure that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Commencement Date;
- (b) continue to provide access to working capital and sources of credit for the Divestiture Business in a manner which is consistent with the financing of the Divestiture Business before the Commencement Date;

- (c) continue to provide administrative and technical support for the Divestiture Business in a manner which is consistent with the operation of the Divestiture Business before the Commencement Date and in accordance with any plans established before the Commencement Date;
- (d) continue existing Agreements relating to the Divestiture Business with customers, suppliers and/or other third parties that are in place at the Commencement Date;
- (e) renew or replace upon expiry Material Contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;
- (f) maintain the supply of those goods and services that are part of the Divestiture Business to existing customers in a manner consistent with the supply of those goods and services as at the Commencement Date;
- (g) maintain the standard of manufacture, distribution, promotion and sale of those products which form part of the Divestiture Business as at the Commencement Date;
- (h) promote and market the products that form part of the Divestiture Business in accordance with any plans established before the Commencement Date; and
- (i) carry out such other actions or plans as necessary or convenient to maintain the Divestiture Business as an effectively competitive going concern.

Personnel of the Divestiture Business

- 7.3 From the Commencement Date until completion of the divestiture of the Divestiture Business or the end of the Sale Period, Black Rhino must:
- (a) replace any
 - (i) Transferred Personnel; or
 - (ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business;who leave or will leave the Divestiture Business before divestiture;
 - (b) not terminate or vary the terms of employment or engagement (or agree to do any of those things) of any of the
 - (i) Transferred Personnel; or
 - (ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business; and
 - (iii) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the Divestiture Business as at the Commencement Date to any other business operated by Black Rhino or the Seller.
- 7.4 As soon as practicable after the Commencement Date, Black Rhino must direct its personnel, including directors, contractors, managers, officers, employees and agents not to do anything inconsistent with Black Rhino's obligations under this Undertaking.

Black Rhino's ongoing obligations in relation to the Divestiture Business

- 7.5 To the extent Black Rhino has obligations in relation to the provision of transitional technical assistance or continued supply pursuant to clauses 5.9 to 5.14 of this Undertaking in relation to the Divestiture Business, Black Rhino must not sell, assign, transfer, and/or licence directly or indirectly any of the assets necessary to fulfil such obligations without the prior written consent of the ACCC.

8. Failure to divest the Divestiture Business

- 8.1 In the event that the divestiture of the Divestiture Business to an Approved Purchaser is not completed by the end of the Sale Period, Black Rhino must not complete the Acquisition.

9. Notification of key dates and ACCC requests for information

- 9.1 Black Rhino must notify the ACCC in writing of:
- (a) the anticipated completion date of the Acquisition, at least five Business Days before that date;
 - (b) the anticipated date of the completion of the divestiture of the Divestiture Business, at least five Business Days before that date;
 - (c) the occurrence of the completion of the Acquisition within one Business Day of that date; and
 - (d) the occurrence of the completion of the divestiture of the Divestiture Business, within one Business Day of that date.
- 9.2 The ACCC may direct Black Rhino in respect of its compliance with this Undertaking to, and Black Rhino must:
- (a) furnish information to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce documents and materials to the ACCC within Black Rhino's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 9.3 Any direction made by the ACCC under clause 9.2 will be notified to the Black Rhino, in accordance with clause 15.2.
- 9.4 Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 9 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 9.5 Nothing in this clause 9 requires the provision of information or documents in respect of which Black Rhino has a claim of legal professional or other privilege.

10. Disclosure of this Undertaking

- 10.1 Black Rhino and the ACCC agree that Confidential Schedule 4 will remain confidential until after the completion of the divestiture of the Divestiture Business.
- 10.2 Black Rhino acknowledges that the ACCC may:
- (a) make this Undertaking publicly available;

- (b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and
- (c) from time to time publicly refer to this Undertaking.

10.3 Nothing in clause 10.1 or the confidential parts of this Undertaking referred to in clause 10.1 prevents the ACCC from disclosing such information as is:

- (a) required by law;
- (b) permitted by section 155AAA of the Act;
- (c) necessary for the purpose of enforcement action under section 87B of the Act; or
- (d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.

10.4 Nothing in clause 10.1 or the confidential parts of this Undertaking referred to in clause 10.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

11. Obligation to procure

- 11.1 Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Black Rhino to take or refrain from taking some action, Black Rhino will procure that Related Body Corporate to take or refrain from taking that action.
- 11.2 Where the performance of an obligation under this Undertaking requires taking or refraining from taking some action in relation to Northern Road DBS, Black Rhino must procure that the Seller takes or refrains from taking that action to perform that obligation and, to the extent Black Rhino is capable of doing so, must take all actions reasonably necessary to facilitate, give effect to and secure compliance with that obligation. Black Rhino must not do, or omit to do, anything that would hinder, prevent or delay the Seller's performance of obligations in relation to Northern Road DBS.

12. No Derogation

- 12.1 This Undertaking does not prevent the ACCC from taking enforcement action at any time, whether during or after the period of this Undertaking, in respect of any breach by Black Rhino of any term under this Undertaking.
- 12.2 Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Black Rhino does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

13. Change of Control

- 13.1 In the event that a Change of Control is reasonably expected to occur before the end of the Sale Period, Black Rhino must:
 - (a) notify the ACCC of this expectation as soon as practicable; and

- (b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on Black Rhino pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified Black Rhino in writing that a section 87B undertaking under this clause is not required.

14. Costs

- 14.1 Black Rhino must pay all of its own costs incurred in relation to this Undertaking.

15. Notices

Giving Notices

- 15.1 Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au

Attention: Executive General Manager

Mergers and Exemptions Assessment Division

With a copy sent to: mergersru@accc.gov.au

Attention: Director, Remedies Unit

Merger Surveillance & Coordination Branch

Mergers and Exemptions Assessment Division

- 15.2 Any notice or communication to Black Rhino pursuant to this Undertaking must be sent to:

Name: [REDACTED]

Address: [REDACTED]

Email Address: [REDACTED]

Attention: [REDACTED]

With a copy sent to:

Name: [REDACTED]

Address: [REDACTED]

Email Address: [REDACTED]

Attention: [REDACTED]

- 15.3 If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent to or from a place outside Australia).

- 15.4 If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

- 15.5 Black Rhino must notify the ACCC of a change to its contact details within three Business Days.
- 15.6 Any notice or communication will be sent to the most recently advised contact details and subject to clauses 15.3 and 15.4, will be taken to be received.

16. Defined terms and interpretation

Definitions in the Dictionary

- 16.1 A term or expression starting with a capital letter:
- (a) which is defined in the Dictionary in Part 1 of Schedule 1 (**Dictionary**), has the meaning given to it in the Dictionary; or
 - (b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

- 16.2 Part 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

Execution Page

EXECUTED as an Undertaking.

DATED

17 August 2026

EXECUTED by Black Rhino Group Pty Ltd ACN 609 276 048 pursuant to section 127(1) of the Corporations Act 2001 (Cth):



Sole Director

David Tomsic

Name of Sole Director

DATED

17 August 2026

EXECUTED by Black Rhino (Club Roma) Pty Ltd ACN 693 060 187 pursuant to section 127(1) of the Corporations Act 2001 (Cth):



Signature of Sole Director

DAVID TOMSIC

Name of Sole Director

DATED

17 August 2026

EXECUTED by Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for Light Them Up (Roma) Trust ABN 17 705 523 498 pursuant to section 127(1) of the Corporations Act 2001 (Cth):



Sole Director

DAVID TOMSIC

Name of Sole Director

DATED

17 August 2026

EXECUTED by Black Rhino (Royal 99) Pty Ltd ACN
675 226 758 pursuant to section 127(1) of the
Corporations Act 2001 (Cth):



Signature of Sole Director

DAVID TOMSIC

Name of Sole Director

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

19 August 2026

Date

and signed on behalf of the Commission:



Deputy Chair

19 August 2026

Date

Schedule 1 Dictionary and interpretation

1. Dictionary

ACCC means Australian Competition and Consumer Commission.

Acquisition is defined in clause 2 of this Undertaking.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreements means any contract, arrangement or understanding, including any contract, arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Purchaser means the person approved by the ACCC under clause 6 of this Undertaking.

Approved Sale and Purchase Agreement means the contract approved by the ACCC in accordance with the terms of this Undertaking, by which the Divestiture Business will be divested to the Approved Purchaser and Approved Purchaser will acquire the Divestiture Business.

Approved Transitional Supply Agreement means any agreement, for the supply of goods or services (other than Technical Assistance) to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Transitional Technical Assistance Agreement means any agreement, for the supply of Technical Assistance to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Business Day means a day other than a Saturday, Sunday or public holiday in Brisbane, Queensland.

Change of Control means:

- the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of Black Rhino to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- the sale or transfer of assets necessary, or which may be necessary, to enable Black Rhino to continue to comply with this Undertaking in its entirety.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Consents means any Government Consents or Third Party Consents.

Corporations Act means the *Corporations Act 2001* (Cth).

Divestiture Business means the items described in Schedule 3 to this Undertaking.

Government Consents means any consents from any government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approvals or contracts required for the operation of the Divestiture Business;

Material Change means any change to the structure, attributes, extent or operations of the Divestiture Business or product or service sold by a Divestiture Business that may affect, or impact on, the competitiveness of the Divestiture Business.

Material Contract means any Agreement that is necessary for the operation of the Divestiture Business.

McDowall DBS means the bottleshop conducted from 42 McDowall Street, Roma QLD 4455;

Northern Road DBS means the bottleshop conducted from 61 Northern Road, Roma QLD 4455;

Proposed Purchaser means a person named in a Proposed Purchaser Notice.

Proposed Purchaser Notice has the meaning given to it in clause 6.2 of this Undertaking.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Bodies Corporate has the meaning given by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Royal 99 DBS means the bottleshop conducted from Shop 2, 34-38 Hawthorne Street, Roma QLD 4455 (where the other listed address for the same business is 73 Arthur Street, Roma);

Sale Period is defined in the Confidential Schedule 4 to this Undertaking.

Seller means Speedy Cocktails Pty Ltd ACN 619 330 255.

Technical Assistance includes advising on technical knowledge documentation, supporting the Approved Purchaser on acquiring specific assets necessary for the ongoing conduct of the Divestiture Business, providing staff with suitable experience and skills to assist and/or advice on technical issues, assisting in training for the Approved Purchaser's staff, and providing guidance on regulatory and legal aspects relating to the transfer of or application for licences.

Third Party Consents means any Consent from any entity that is not a government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approvals or contracts required for the operation of the Divestiture Business.

Transferred Personnel has the meaning given to it in clause 5.7 of this Undertaking.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

2. Interpretation

- 2.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

- (a) a reference to this Undertaking includes all of the provisions of this document including its schedules;
- (b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;
- (c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;
- (d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;
- (e) a reference in this Undertaking to any company includes its Related Bodies Corporate;
- (f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;
- (g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;
- (h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;
- (i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;
- (j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular.
- (k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;
- (l) a construction that would promote the purpose – or object – underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;
- (m) material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;
- (n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:

- (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;
- (o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;
- (p) in performing its obligations under this Undertaking, Black Rhino will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking; and
- (q) a reference to:
 - (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (ii) a party includes its successors and permitted assigns; and
 - (iii) a monetary amount is in Australian dollars.

Schedule 2 Proposed Purchaser Notice Form

This form sets out the information required by the ACCC in relation to a Proposed Purchaser.

Please note that it is an offence under s137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached should be provided to the ACCC using the following method:

Email

Subject line: Proposed Purchaser Notice – [insert name of undertaking]
Address: mergers@accc.gov.au
Attention: Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au
Attention: Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

2.1 The ACCC requires the following information in order to assess a Proposed Purchaser.

Proposed Purchaser details:

- (a) Name of the Proposed Purchaser;
- (b) Address;
- (c) Contact name;
- (d) Telephone number;
- (e) Other contact details.

2.2 A submission containing the following information:

- (a) a description of the business carried on by the Proposed Purchaser including the locations in which the Proposed Purchaser carries on its business;
- (b) details of the Proposed Purchaser's experience in the relevant market(s);
- (c) the names of the owner(s) and the director(s) of the Proposed Purchaser;
- (d) details of any of the following types of relationships between Black Rhino and the Proposed Purchaser or confirmation that no such relationship exists whether within Australia or outside of Australia:

- (i) Black Rhino and the Proposed Purchaser are Associated Entities;
 - (ii) Black Rhino is an Entity Connected with the Proposed Purchaser;
 - (iii) the Proposed Purchaser is an Entity Connected with Black Rhino;
 - (iv) Black Rhino and the Proposed Purchaser are Related Entities;
 - (v) Black Rhino and the Proposed Purchaser are Related Parties;
 - (vi) any Related Party, Related Entity or Entity Connected with Black Rhino is a Related Party, Related Entity or Entity Connected with the Proposed Purchaser;
 - (vii) Black Rhino and the Proposed Purchaser have a contractual relationship or had one within the past three years, other than those attached to this form;
 - (viii) the Proposed Purchaser is a supplier of Black Rhino or has been in the past three years;
 - (ix) Black Rhino is a supplier of the Proposed Purchaser or has been in the past three years; and
 - (x) any other relationship between Black Rhino and the Proposed Purchaser that allows one to affect the business decisions of the other;
- (e) a section addressing the following factors, including any information adverse to the Proposed Purchaser, in the power, possession or control of Black Rhino:
- (i) whether the draft sale and purchase agreement is consistent with this Undertaking;
 - (ii) whether the Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;
 - (iii) whether the Proposed Purchaser is of good financial standing;
 - (iv) whether the Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;
 - (v) whether the Proposed Purchaser is able to conduct the Divestiture Business effectively;
 - (vi) whether the divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including any relationships (including but not limited to shareholding interests, other proprietary interests, contracts, arrangements or understandings) between the Proposed Purchaser and other entities in a relevant market, and the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser; and
 - (vii) any other matters that may affect the Proposed Purchaser's capacity or ability to acquire or operate the Divestiture Business, such as outstanding legal action or disputes.

2.3 Please also attach to this form:

- (a) the finalised draft of the sale and purchase agreement for approval by the ACCC in accordance with this Undertaking.

- (b) the finalised draft of any transitional technical assistance agreement for approval by the ACCC in accordance with this Undertaking.
- (c) the finalised draft of any transitional supply agreement for approval by the ACCC in accordance with this Undertaking.
- (d) any documents required to support the information provided by Black Rhino pursuant to this form.

Schedule 3 Divestiture Business

The Divestiture Business means the whole of the business conducted from Royal 99 DBS or Northern Road DBS (or both), including all assets, rights, interests, including leasehold interests, and other property associated with that business including (without limitation):

- (a) the business goodwill;
- (b) plant and equipment;
- (c) inventory and stock in trade;
- (d) the benefit of the premises lease or other occupancy rights;
- (e) the benefit of all assignable supplier contracts and operating agreements (to the extent required by the Approved Purchaser);
- (f) transferring employees (to the extent employment is offered by the Approved Purchaser and accepted by the respective employees);
- (g) all transferable licences, permits and approvals;
- (h) customer and business records to the extent legally transferable;
- (i) intellectual property, trading names and branding used in connection with the Divestiture Business to the extent transferable and to the extent sought by the Approved Purchaser. For clarity, the Approved Purchaser will have the discretion to accept the existing branding or procure new branding;
- (j) telephone numbers, email addresses, websites and social media accounts used
- (k) exclusively in connection with the Divestiture Business, where transferable; and
- (l) all other assets, rights and interests necessary for the Approved Purchaser to operate the Divestiture Business as a viable, ongoing and effective independent competitor.

Confidential Schedule 4